

22SMCV01974 22SMCV01974

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-07

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Case Number: 22SMCV01974 Hearing Date: August 7, 2026 Dept: P

Tentative

Ruling

Yaghoub

Kermanshahi, et al. v. Orbic Air, et. al., Case No. 22SMCV01974

Motions:

(1)

Plaintiffs'

Motion to Quash Orbic Air, LLC's Subpoena for production of Sahel Kermanshahi's employment, personnel, and medical records from CVS Pharmacy, Inc.

(2)

Plaintiffs'

Motion to Quash Orbic Air, LLC's Subpoena for production of Sahel Kermanshahi's employment, personnel, and medical records from State Pharmacy

Hearing

Date: August 7, 2026

Background

Plaintiffs

Simin Korei, individually and as successor to the estate of Yaghoub

Kermanshahi, Sahel Kermanshahi, and Saman Kermanshahi sue Defednatns Orbic Air,

LLC ("Orbic Air"); Hosking Aviation, Inc., Butterfly Floral and Event Design,

Inc., and The Semler Complaies d/b/a Saddlerock Ranch ("Saddlerock Ranch") for

wrongful death, survival and loss of consortium. Plaintiffs allege that Yaghoub Kermanshahi was a guest at a wedding on May 30, 2021, at Saddlerock Ranch, when a helicopter flew over the wedding to drop flower petals, causing a temporary structure to collapse and injure Yaghoub Kermanshahi. (Second Amended Complaint ["SAC"], ¶ 13.) Plaintiffs allege that Yaghoub Kermanshahi suffered severe injuries and died on May 15, 2023. (SAC, ¶ 14.)

On October
25, 2022, Plaintiffs filed the complaint.

On March
23, 2023, Saddlerock Ranch filed a cross-complaint.

On
December 7, 2023, Plaintiffs filed the first amended complaint.

On
February 8, 2024, Cross-Defendants Sophia Hakakian and Eliot Khakshoy filed a cross-complaint.

On March
7, 2024, Plaintiffs filed the SAC.

On April
2, 2024, Hosking Aviation, Inc. filed a cross-complaint against Orbic Air.

On April
23, 2024, Orbic Air filed an Amended Cross-Complaint.

On June
18, 2024, the Court granted Saddlerock Ranch's motion for leave to file an amended cross-complaint. On July 10, 2024, Saddlerock Ranch filed an amended cross-complaint.

On August
20, 2024, Osanna Anna Kotelyan filed a cross complaint

On
September 23, 2024, the Court overruled Sophia Hakakian and Eliot Khakshoy's demurrer to Saddlerock Ranch's amended cross-complaint.

On October

13, 2024, Saddlerock Ranch filed a Second Amended Cross-Complaint.

On January

14, 2025, Eliot Khakshoy and Sophia Hakakian filed an amended cross-complaint.

On June 1,

2026, the Court deemed this case related to LASC case no. 26SMCV00450.

On June 5,

2026, Plaintiffs filed these motions to quash. On July 27, 2026, Orbic Air filed opposition.

Jury trial

in this case is scheduled for January 11, 2027.

Arguments

Plaintiffs

move to quash Orbic Air's subpoena of Sahel Kermanshahi's employment and medical records from her former employer CVS Pharmacy and current employer State Pharmacy. Plaintiffs argue that a plaintiff's finances and emotional damages in a survival action are not relevant and that juries are specifically instructed not to consider those factors when deciding damages on a survivorship action. (Motion, p. 5.) Plaintiffs also argue that the subpoenas seek privileged and confidential doctor-patient communications and tax documents. (Id. at pp. 6-8.)

In

opposition, Orbic Air argues that Plaintiffs' motion lacks the required separate statement, plaintiff has waived financial or medical privacy privilege by testifying about her financial hardship at her deposition, and that good cause exists to allow the subpoena because Orbic Air has an important interest in obtaining Sahel's employment records because she claims loss of income.

Governing

Law- Motion to Quash Subpoena

"If a

subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Code Civ. Proc. (CCP), § 1987.1, subd. (a).)

Discussion

Plaintiffs

two motions are identical, as are Orbic Air's oppositions. The same reasoning applies to both motions.

a.

Procedural

Issues

California

Rules of Court Rule 3.1345 states that "any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement." This rule applies to motions "to compel or quash the production of documents or tangible things at a deposition." (CRC rule 2.1345(a)(5).) However, a separate statement is not required where no responses have been produced. (CRC, Rule 3.1345(b)(1).

Plaintiffs'

motions are motions to quash the production of documents at a deposition, so a separate statement is required if CVS Pharmacy or State Pharmacy had produced responsive discovery because Plaintiffs objected to the subpoena. (See Motions, Exhibits 1.) Orbic Air's opposition confirms that it "paused" the subpoenas pending the Court's ruling on these motions. (Hembree Decl., ¶ 9.)

Therefore,

the Court will rule on the merits of Plaintiffs' motions.

b.

Survivor

Damages in a Wrongful Death Action

Plaintiffs

are correct that any evidence of Sahel's lost wages or financial damages are inadmissible. Survivors in a wrongful death action can recover the pecuniary value of the decedent's "support, society, comfort, care and protection." (Krouse v. Graham (1977) 19 Cal.3d 59, 69.) However, that does not necessarily make the information privileged or non-discoverable. Under the Discovery Act, any matter that is relevant to the subject matter and not privileged is discoverable if it is itself admissible or "appears reasonably calculated to lead to the discovery of admissible evidence." (CCP § 2017.010.)

Defendants

argue that Sahel's discovery responses show that she was financially harmed by the accident and her father's subsequent death because she took time off work to care for him and later to care for her mother, who was undergoing cancer treatment. Defendants also argue that Sahel claims emotional distress damages in the complaint.

Sahel's

emotional distress damages as a result of her father's death are not relevant and not admissible on a wrongful death claim without a negligent infliction of emotional distress claim. Drawing the line between compensable "support, society, comfort, care and protection" injuries and non-compensable emotional distress is difficult. "[J]uries may be awarding damages for grief and sorrow instead of limiting recovery to the properly compensable elements of support, society, comfort, care and protection: 'But while loss of society and comfort, and protection may be an element of the injury sustained by the statutory beneficiaries, it is only the pecuniary, and not the sentimental, value of such loss which may be taken into consideration in the assessment of damages. Nothing can be recovered as a solatium for wounded feelings. . . .' [citation]" (Krouse v. Graham (1977) 19 Cal.3d 59, 69, citing Ure v. Maggio Bros. Co., Inc. (1938) 24 Cal.App.2d 490.)

Here, Sahel's

deposition testimony and discovery responses indicate that she was emotionally damaged by her father's death, as is to be expected, but do not show that Orbic

Air's subpoenas are reasonably calculated to lead to the discovery of admissible evidence because the records they request are only relevant to inadmissible damages. Orbic Air has not shown good cause for its subpoenas.

Conclusion

Plaintiffs'

Motions to Quash are GRANTED.